

26PR00275 Matter of The David & Doris Sola Trust

County: santa-barbara

Division: Trust

Hearing date: 2026-07-22

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Matter of The David & Doris Sola Trust

Case Number

26PR00275

Case Type

Trust

Hearing Date / Time

Wed, 07/22/2026 - 09:30

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Supplement re: Chain of Recorded Title. The petition alleges title to 1323 White Ct., Santa Maria, is held by the trust, because the settlors of the subject trust transferred title to themselves as trustees, but made an error in the recorded instrument by failing to include the legal description of the property as an attachment to the recorded instrument. The documents submitted in support of those allegations, however, create an ambiguity related to the description of the property.

First Amended and Restated Declaration of Trust assigns two different APNs to what is described as 1323 White Ct. On page 2 of the instrument, at Article 5.01, the Declaration of Trust states that the APN assigned to 1323 White Ct. is 117-600-022. But on page 17 of that same instrument, the APN listed for 1323 White Ct. is 123-192-09-00. The recorded Trust Transfer deed does not refer to an address at all, and only contains an APN of 117-600-22.

Petitioner must submit supplement explaining the differences in APNs and attach the immediately preceding deed recorded on 1323 White Ct. before the 2008 Trust Transfer Deed was recorded.

Any Respondents desirous to object must file a written objection before the next hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Denise M. Hippach

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